

25NNCV04886 25NNCV04886

County: los-angeles

Division: Civil Law and Motion

Department: D

Hearing date: 2026-09-11

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Case Number: 25NNCV04886 Hearing Date: September 11, 2026 Dept: D

TENTATIVE RULING

Calendar: 7

Date: September 11, 2026

Case No: 25NNCV04886 Trial Date: October 25, 2027

Case Name: Jin v. American Honda Motor Co., Inc., et al.

MOTION TO COMPEL ARBITRATION

[9 U.S.C. § 1, et seq and CCP § 1281.2]

Moving Party: Defendant, American Honda Motor Co., Inc.

Responding Party: Plaintiff, Xing Jin

RELIEF REQUESTED:

An order compelling Plaintiff to arbitrate this matter and to stay the proceedings pending completion of arbitration.

CAUSES OF ACTION: from Complaint

1) Breach of Express Warranty Obligations Under the Song-Beverly Warranty Act

2) Breach of Implied Warranty of Merchantability Under the Song Beverly-Warranty Act

SUMMARY OF FACTS:

This is a lemon-law action. Xing Jin ("Plaintiff") alleges that on November 20, 2022, Plaintiff leased a new 2023 Acura MDX AWD for which defendant American Honda Motor Co., Inc. ("Defendant") issued express warranties. Plaintiff alleges that at the time the vehicle was delivered to Plaintiff, the vehicle was not in a merchantable condition and did not conform to the quality guidelines reasonably expected of a motor vehicle. Plaintiff alleges that certain defects and nonconformities to warranty manifested themselves within the express warranty period. The Complaint alleges that notwithstanding Plaintiff's entitlement, Defendant has failed to either promptly replace the new motor vehicle or to promptly make restitution in accordance with the Song-Beverly Act.

ANALYSIS:

Under both the Federal Arbitration Act, 9 U.S.C. § 1, et seq. (the "FAA"), and Title 9 of Part III of the California Code of Civil Procedure commencing at section 1281 (known as the California Arbitration Act), arbitration agreements are valid, irrevocable, and enforceable, except on such grounds that exist at law or equity for voiding a contract. (*Winter v. Window Fashions Professions, Inc.* (2008) 166 Cal.App.4th 943, 947.)

Section 2 of the FAA provides, in pertinent part that "[a] written provision . . . to settle by arbitration a controversy thereafter arising out of such contract . . . shall be valid, irrevocable, and enforceable." (9 U.S.C. § 2.) Code of Civil Procedure section 1281.2 permits a party to file a motion to request that the Court order the parties to arbitrate a controversy. The Court may grant the motion if the Court determines that an agreement to arbitrate the controversy exists, "unless it determines that: (a) The right to compel arbitration has been waived by the petitioner; or (b) Grounds exist for rescission of the agreement." (CCP § 1281.2.)

A court's inquiry is limited to a determination of (1) whether a valid arbitration agreement exists and (2) whether the arbitration agreement covers the dispute. (9 U.S.C. § 4; *Chiron Corp. v. Ortho Diagnostics Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130; *Howsam v. Dean Witter Reynolds, Inc.* (2002) 537 U.S. 79, 84; *Omar v. Ralphs Grocery Co.* (2004) 118 Cal.App.4th 955, 961; *Lacayo v. Cataline Restaurant Group Inc.* (2019) 38 Cal.App.5th 244, 257 [Where moving party meets initial burden, "the party opposing arbitration must prove by a preponderance of the evidence any defense to the petition"].)

Existence of Valid Arbitration Agreement

The party moving to compel arbitration must establish the existence of a written arbitration agreement between the parties. (CCP, § 1281.2.) The moving party can meet this initial burden by attaching to the petition a copy of the arbitration agreement purporting to bear the respondent's signature. (*Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541, 541-543.) Alternatively, the moving party can meet its initial burden by setting forth the agreement's provisions in the motion. (See *Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 219; see also Cal. Rules of Court, rule 3.1330.)

In support of the motion, Defendant attaches a copy of the arbitration clause contained in the lease agreement for the subject vehicle executed by Plaintiff and the dealer on November 20, 2022. (Mossy Decl., Ex. A.) In relevant portion, the arbitration clause states:

"Any claim or dispute, whether in contract, tort, statute or otherwise (including the interpretation and scope of this Arbitration Provision, and the arbitrability of the claim or dispute), between you and us or our parents, subsidiaries, affiliates, employees, officers, agents, representatives, predecessors, successors or assigns (individually and collectively "us" or "our") which arises out of or relates to your credit application, origination or servicing of this lease, the manufacture, delivery, condition, or performance of this Vehicle, any representations, omissions, or warranties, or any resulting transaction or relationship (including any such relationship with third parties who do not sign this Lease) shall, at your or our election, be resolved by neutral, binding arbitration, and not by a court action." (Mossy Decl., Ex. A, § 26.)

The Lease Agreement defines “we,” “us” and “our” to mean Acura of Alhambra as the lessor and Honda Lease Trust as the assignee. (Mossy Decl. ¶ 3, Ex. A, p. 1.) Honda Lease Trust is a wholly-owned subsidiary of American Honda Financial Corporation (“AHFC”). AHFC is a wholly-owned subsidiary of Defendant. (Mossy Decl., ¶¶ 3-5.) Generally, a non-signatory parent company may compel arbitration of actions arising out of its subsidiary company’s agreement to arbitrate so long as the parent company had sufficient control over the subsidiary’s activities. (See *Cohen v. TNP 2008 Participating Notes Program, LLC* (2019) 31 Cal.App.5th 840, 864-865.)

The terms of the arbitration clause are broadly stated to include the signatories’ “parents, subsidiaries, affiliates ... or assigns.” (Mossy Decl., Ex. A, § 26.) Honda Lease Trust is designated as an assignee under the Lease. Defendant is the parent company of Honda Lease Trust’s parent company and is encompassed by the Lease Agreement’s broad language regarding parents and affiliates. Defendant may compel arbitration based on the arbitration provision contained in the Lease Agreement. (See *Cohen*, supra, 31 Cal.App.5th at pp. 864-865.)

Thus, the Court finds that a valid arbitration agreement exists between the parties.

Arbitrability of Dispute

The Court further finds that the arbitration clause covers Plaintiff’s claims here. The arbitration clause applies to “Any claim or dispute, whether in contract, tort, statute or otherwise [...], between you and us or our parents, subsidiaries, affiliates, employees, officers, agents, representatives, predecessors, successors or assigns [...] which arises out of or relates to [...] the manufacture, delivery, condition, or performance of this Vehicle, any representations, omissions, or warranties, or any resulting transaction or relationship (including any such relationship with third parties who do not sign this Lease).” (Mossy Decl., Ex. A, § 26.) Plaintiff’s claims here all arise out of or relate to the manufacture, condition and performance of the vehicle as well as the warranties provided by Defendant. (Compl., ¶¶ 6-15.) “[I]n determining whether a matter is subject to arbitration, courts apply the presumption in favor of arbitration [citation].... ‘Doubts as to whether an arbitration clause applies to a particular dispute are to be resolved in favor of sending the parties to arbitration. The court should order them to arbitrate unless it is clear that the arbitration clause cannot be interpreted to cover the dispute.’” (*California Correctional Peace Officers Assn. v. State of California* (2006) 142 Cal.App.4th 198, 205.) Plaintiff’s claims are thus arbitrable under the clause at issue.

Thus, Defendant has met its initial burden to establish the existence of a written arbitration agreement between the parties which covers the instant dispute. The burden thus shifts to Plaintiff to establish that a defense exists to enforcement of the agreement.

Defenses

Under the FAA, a party may challenge the validity or applicability of the arbitration provision by raising the same defenses available to a party seeking to avoid the enforcement of any contract. (*Cox v. Ocean View Hotel Corp.* (2008) 553 F.3d 1114, 1121.)

Waiver

Plaintiff argues that Defendant has waived its right to compel arbitration by waiting over a year to bring this motion. “[I]n the absence of legal excuse, a party’s failure to timely demand arbitration results in a contractual forfeiture of the right to compel arbitration.” (*Platt Pacific, Inc. v. Andelson* (1993) 6 Cal.4th 307, 319.)

“To establish waiver under generally applicable contract law, the party opposing enforcement of a contractual agreement must prove by clear and convincing evidence that the waiving party knew of the contractual right and intentionally relinquished or abandoned it.” (*Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 584.) “Under the clear and convincing evidence standard, the proponent of a fact must show that it is ‘highly probable’ the fact is true.” (*Ibid*, quoting

Conservatorship of O.B. (2020) 9 Cal.5th 989, 995.) “The waiving party’s knowledge of the right may be ‘actual or constructive.’” (Ibid, quoting *Outboard Marine Corp. v. Superior Court* (1975) 52 Cal.App.3d 30, 41.) “Its intentional relinquishment or abandonment of the right may be proved by evidence of words expressing an intent to relinquish the right or of conduct that is so inconsistent with an intent to enforce the contractual right as to lead a reasonable fact finder to conclude that the party had abandoned it.” (Ibid.) “[T]here is no requirement that the party opposing enforcement of the contractual right demonstrate prejudice or otherwise show harm resulting from the waiving party’s conduct.” (Id. at p. 585.)

To meet the first element of waiver, a plaintiff must show by clear and convincing evidence that the defendant knew of the arbitration provision. (Quach, supra, 16 Cal.5th at p. 584.) Here, the arbitration provision is contained in the Lease Agreement that is attached to the Complaint. There is no dispute that the Defendant was aware of the arbitration provision from the outset of the case.

Next, a plaintiff must show by clear and convincing evidence that the defendant intentionally relinquished or abandoned his right to compel arbitration. (See Quach, supra, 16 Cal.5th at p. 584.)

In Quach, the court held that the defendant waived its right to arbitration when “fully aware of its right to compel arbitration, [it] chose not to do so for 13 months, affirmatively indicated its intent to pursue a jury trial rather than arbitration, and actively engaged in discovery—words and conduct markedly inconsistent with an intent to arbitrate.” (Id. at p. 587.) “Although [the defendant] asserted in its answer that [the plaintiff] should be compelled to arbitrate, its counsel did not otherwise raise the issue with [plaintiff]’s counsel or with the court. (Id. at p. 586.) On [the [defendant’s] initial case management conference statement, filed about three months after [the plaintiff] filed his complaint, [the defendant] requested a jury trial, left the check box for indicating it was ‘willing to participate’ in arbitration blank, and represented that the only motion it intended to file was a ‘dispositive motion.’” (Quach, supra, 16 Cal.5th at pp. 586-587.) The trial court found that the defendant “instead of moving to compel arbitration, propounded a ‘large amount’ of written discovery, spent ‘significant’ time meeting and conferring ‘over many months,’ and took [the plaintiff]’s deposition, demonstrating ‘a position inconsistent [with the intent] to arbitrate’....” (Id. at p. 571.)

Here, Plaintiff argues that Defendant waived its right to compel arbitration by filing an Answer, responding to Plaintiff’s written discovery, and attending a case management conference all before first raising the issue of arbitration on April 8, 2026. (Opp., p. 5:5-20.) Plaintiff asserts that the parties then attended a second case management conference and set a mediation date for April 7, 2027 before Defendants filed the instant motion on July 13, 2026. (Opp., p. 5:20-25.) The Court does not find that these actions indicate a clear intent to abandon the right to compel arbitration. Unlike in Quach, Defendant here has not propounded any written discovery, spent any significant time meeting and conferring over substantive issues in this case, taken Plaintiff’s deposition, or otherwise clearly demonstrated a position inconsistent with the intent to arbitrate. (Quach, supra, 16 Cal.5th at p. 571.) In the Song-Beverly Act Joint Case Management Conference Statement Addendum filed on April 15, 2026, Defendant indicated that it intended to compel arbitration. (4/15/2026 Song Beverly Act Joint Case Addendum.)

Accordingly, the Court concludes that Defendant’s conduct is not “so inconsistent with an intent to enforce the contractual right [to arbitration] as to lead a reasonable fact finder to conclude that the party had abandoned it.” (Quach, supra, 16 Cal.5th at p. 584.)

Defendant is a Non-Signatory

Plaintiff further argues the motion should be denied because Defendant is not a signatory to the Lease Agreement. Plaintiff relies on the holding in the Ford Motor Warranty Cases (2025) 17 Cal.5th 1122 for this argument. However, Plaintiff’s reliance on the Ford Motor Warranty Cases is misplaced. There, the Supreme Court declined to permit a manufacturer to compel arbitration under principles of estoppel where the arbitration agreement contained no language authorizing enforcement by a third party in the defendant’s position.

This case is distinguishable from the Ford Motor Warranty Cases in that the Lease Agreement specifically extends arbitration rights to parents, subsidiaries, and affiliates. (Mossy Decl., Ex. A, § 26.) Because Defendant is the parent company of the

Lease's assignee, the reasoning in Ford Motor Warranty Cases does not apply. Defendant may thus enforce the arbitration provision.

Thus, based on the foregoing, the motion is GRANTED.

RULING:

Defendant, American Honda Motor Co., Inc.'s Motion to Compel Arbitration is GRANTED.

The case is ordered STAYED pending binding arbitration as to the entire action.